

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 11, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right to Portability against the DEPARTMENT OF EDUCATION OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT (hereinafter, the complained party) without receiving the legally established response to her request. The complainant states that on August 6, 2024, she submitted a request for data portability concerning tests and assessments conducted on her daughters during the years 2018 to 2023, including both copies of the test booklets used in the corresponding psycho-pedagogical evaluations and the responses obtained, without having received a proper response after one month from her request. She provides a copy of her request and proof of submission.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims as satisfied. Consequently, on November 25, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the complained party a hearing, so that within a period of fifteen working days, it could present the allegations it deemed appropriate, summarizing the following allegations:

"Setting aside that, as has already been established in previous resolutions of the Spanish Agency for the Protection of Data, the transmission of health data from an educational center, such as the psycho-pedagogical reports that are the subject of this complaint, to a private email, in this case of a Private Psychology Center completely unrelated to this educational administration, is not permissible. Finally, the letter from the Agency that gives rise to these allegations mentions that the exercise of the requested right has not been accredited, and in this regard, certificates from each of the three centers in León where the complainant's daughters are or have been studying are attached, certifying the availability of the requested documents."

FOURTH: Having examined the document submitted by the complained party, it is forwarded to the complainant, so that, within a period of fifteen working days, she may formulate the allegations she considers appropriate, summarizing the following allegations:

"The educational centers of the Department of Education have communication platforms with families (Stilus Family, Infoeduca, Teams, etc.) as well as corporate emails that could allow for the electronic transmission of the requested documentation.

Notwithstanding the above, the Department may also choose to make the requested documentation available to the complainant through the electronic notification system (<https://www.ae.jcyl.es/notifica/#/>) in order to guarantee the principle of security of communications, confidentiality guarantee, electronic record confronted with a secure verification code, and acknowledgment of receipt by the recipient. In fact, in the context of the general administrative procedure, the complainant, as an interested party being the mother of the minors to whom the requested information refers, has the right to choose to interact electronically with the educational Administration and to access the requested documentation in this manner, in accordance with the provisions of Articles 14.1 and 53.1 a) of the LPAC, a right that is being violated by forcing her to go in person to the educational centers."

FIFTH: Having examined the document submitted by the complainant, it is forwarded to the

complained party, so that, within a period of fifteen working days, it may formulate the allegations it considers appropriate, summarizing the following allegations:

"Firstly, this Department of Education reiterates that the portability requested by the complainant is not applicable as the requested information is not in a structured format, commonly used and machine-readable, nor is it based on the consent of the interested party, nor can it be applied to a processing that, contrary to what the complainant asserts, is necessary for the fulfillment of a mission carried out in the public interest or in the exercise of public powers, all contrary to what is established by Article 20 of the GDPR."

"Moreover, this complaint seems to demonstrate, as in the many others that this applicant has repeatedly filed through different channels against the Department of Education, that her requests do not stem so much from her desire to obtain the requested information, but from other very different motivations."

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different. Because all the information requested is available to you at each of the three centers where your daughters are studying: CEIP "Camino del Norte," IES "Eras de Renuueva," and IES "Claudio Sánchez Albornoz," all located in the city of León. It is highly significant that the claimant maintains conflicts with all of them.

This Ministry has maintained that the public educational centers in Castilla and León currently lack the electronic means of notification that guarantee compliance with the Administrative Procedure Law and the National Security Framework. That is to say, confidentiality and security of communications, and acknowledgment of receipt by the recipient. Neither the Stilus, which is the core coding base of the educational system of Castilla and León, nor the notification system of the electronic headquarters referred to by the claimant, which serves only for receipt but not for issuance, are systems that allow educational centers anything other than making available at the center all documents requested to ensure not only compliance with the aforementioned regulations but also the general compliance with the sectoral education regulations.

And it does not represent a disproportionate effort, as the claimant asserts, to go to the centers to obtain the information, as if residing outside the locality where they are located. This Ministry has records that she often attends meetings with the teaching staff in person. Naturally, the students themselves attend the centers daily, and their father also frequently does. Any of them can collect the requested information upon signing the corresponding receipt.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide evidence of having given the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on November 25, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint upheld.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD.

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consider the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Portability

The right to portability must be exercised in the terms provided in Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (GDPR). Thus, Recital 68 states the following:

"To further strengthen control over their own data, when the processing of personal data is carried out by automated means, data subjects must also be allowed to receive personal data concerning them which they have provided to a data controller in a structured, commonly used, machine-readable, and interoperable format, and to transmit it to another data controller. Data controllers should be encouraged to create interoperable formats that allow for data portability. This right should apply when the data subject has provided personal data with their consent or when the processing is necessary for the performance of a contract. It should not apply when the processing has a legal basis other than consent or contract. By its very nature, this right should not be exercised against controllers that process personal data in the performance of their public functions. Therefore, it should not apply when the processing of personal data is necessary for compliance with a legal obligation to which the controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. The right of the data subject to transmit or receive personal data concerning them should not oblige the controller to adopt or maintain processing systems that are technically compatible. When a specific set of personal data concerns more than one data subject, the right to receive such data should be understood without prejudice to the rights and freedoms of other data subjects in accordance with this Regulation. Furthermore, this right should not undermine the data subject's right to obtain the erasure of personal data and the limitations of that right set out in this Regulation, and in particular, it should not imply the erasure of personal data concerning the data subject that they have provided for the performance of a contract, to the extent and for as long as the personal data are necessary for the performance of that contract. The data subject should have the right to have personal data transmitted directly from one data controller to another, where technically feasible."

For its part, Article 20 of the GDPR concerning the "Right to Data Portability" stipulates that:

"1. The data subject shall have the right to receive the personal data concerning them, which they have provided to a data controller, in a structured, commonly used, and machine-readable format, and to transmit it to another data controller without hindrance from the controller to whom they have provided the data, when:

- a) the processing is based on consent pursuant to Article 6(1)(a) or Article 9(2)(a), or on a contract pursuant to Article 6(1)(b), and
- b) the processing is carried out by automated means.

2. In exercising their right to data portability under paragraph 1, the data subject shall have the right to have the personal data transmitted directly from controller to controller where technically feasible.

3. The exercise of the right referred to in paragraph 1 of this Article shall be without prejudice to Article 17. Such right shall not apply to processing that is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

4. The right referred to in paragraph 1 shall not adversely affect the rights and freedoms of others."

On the other hand, Article 17 of the LOPDGDD under the heading "Right to Portability" establishes the following:

"The right to portability shall be exercised in accordance with the provisions of Article 20 of Regulation (EU) 2016/679."

V

Conclusion

In the case analyzed here, the complaining party exercised their right to Portability, and after the period established in the aforementioned regulations, their request did not receive the legally required response.

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It should be noted that the right to data portability consists of the right of the data subject to receive their personal data, which they have provided to a data controller, in a structured, commonly used, and machine-readable format, and to transmit it to another data controller without hindrance from the controller to whom it was provided.

In this regard, the data subject shall have the right to have their personal data transmitted directly from one controller to another when technically feasible.

However, this right shall apply when:

- a. the processing is based on consent or the performance of a contract.
- b. the processing is carried out by automated means.

Thus, according to the provisions of Article 20 of the GDPR, it must be understood that the emergence of the right to data portability will be determined by the concurrence of a series of conditions, such as that the data subject has first provided their data to a data controller in a structured, commonly used, and machine-readable format; that there is a request to that data controller to transmit it to another data controller or to transmit it to the data subject; that such processing is based either on the consent of the data subject or on a contract; that such processing is carried out by automated means; that it refers only to the personal data concerning the data subject; that it does not adversely affect the rights and freedoms of others; and, finally, it is limited when the processing in question is necessary for the performance of a task carried out in the public interest or in the exercise of official authority.

Consequently, in the event that all these requirements are not met, the requested exercise may be denied.

In this same sense, the Guidelines on the right to data portability of the Article 29 Working Party state the following:

“See Recital 68 and Article 20, paragraph 3, of the GDPR. Article 20, paragraph 3, and Recital 68 stipulate that data portability does not apply when the processing of personal data is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller, or when the data controller is performing its public functions or complying with a legal obligation. Therefore, in such cases, data controllers are not obliged to provide portability.

However, it is a recommended practice to develop processes to automatically respond to portability requests, following the principles governing the right to data portability. An example of this would be a government service that provides an easy download of previous personal income tax returns.

Regarding data portability as a recommended practice in cases of processing based on the legal basis of the necessity of a legitimate interest and systems.”

existing volunteers, see pages 47 and 48 of Opinion 6/2014 of the Article 29 Working Group on legitimate interest (WP217).”

In accordance with the above, the right to data portability does not extend to the documentation subject to the proceedings, as it pertains to documentation related to the exercise of public functions carried out by Educational Administrations. In this regard, the aforementioned Recital 68 states that “this right should not be exercised against controllers who process personal data in the performance of their public functions. Therefore, it should not apply when the processing of personal data is necessary to comply with a legal obligation applicable to the controller or for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the controller.” In the same vein, Article 20.3 of the GDPR establishes that “Such right shall not apply to processing that is necessary for the performance of a task carried out in the public interest or in the exercise of public powers conferred on the controller.”

In the case subject to this complaint, there is no contract between the complainant and the respondent. The relationship between a public school and the parents of a student can be understood as an administrative relationship rather than strictly contractual in the traditional sense. The relationship is governed by the current educational regulations, which establish the rights and duties of both students and parents, as well as the educational institution itself. This includes aspects such as attendance, evaluation, participation in activities, and communication between the school and families. The relationship can be considered more administrative, as it is based on public regulations and the fulfillment of rights and duties established by law, rather than a private contract between the parties. In summary, although it is not a contractual relationship in the strict sense, there are a series of rights and obligations that regulate the interaction between the public school and the parents of a student, grounded in the right to education and the current educational regulations.

Therefore, the respondent is not obliged to send the requested data electronically to another data controller. As indicated by the respondent and evidenced in this file, the documents requested by the complainant are made available to her at each of the three educational centers in León where her daughters are currently enrolled or have previously studied.

However, the aforementioned regulations do not allow for the request to be disregarded as if it had not been made, leaving it without the response that the controllers are required to issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such request is likewise obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

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In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made concerning the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present claim on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

Having reviewed the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the claim made by A.A.A. against the DEPARTMENT OF EDUCATION OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: TO NOTIFY this resolution to A.A.A. and to the DEPARTMENT OF EDUCATION OF THE CASTILLA Y LEÓN REGIONAL GOVERNMENT.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency

for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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